

**TENTATIVE RULINGS FOR April 28, 2026**  
**Department R17**  
**BEFORE THE HONORABLE JANET M. FRANGIE**  
**(sitting on assignment)**

**PLEASE NOTE: There may be multiple tentative rulings so view the entire document.**

This Court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings are posted on the court's website after 3:00 p.m. the day before the hearing at <https://www.sb-court.org/divisions/civil/civil-tentative-rulings>.

You may appear in person or by remote appearance at the hearing. (See [www.sb-court.org/general-information/remote-access](http://www.sb-court.org/general-information/remote-access) ) If you do not have Internet access you may obtain the tentative ruling by calling (909) 285-3753 or telephoning the department at 909-285-3732] If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 p.m. the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling and be prepared to address those issues set forth by the court in its ruling.

**UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULING**

1.

| CASE NUMBER  | CASE NAME                                              | TYPE OF HEARING                                                                       |
|--------------|--------------------------------------------------------|---------------------------------------------------------------------------------------|
| CIVRS2402726 | <i>Roseanna Facundus v. General Motors, LLC, et al</i> | Defendant General Motors, LLC's Demurrer and Motion to Strike First Amended Complaint |

**Tentative Ruling:**

**Demurrer:**

The unopposed demurrer by Defendant General Motors, LLC to the Fifth Cause of Action is sustained, **without leave to amend.**

**Motion to Strike:**

To the extent that the prayer for punitive damages is based on the Fifth Cause of Action, the motion is moot. The remaining four causes of action do not seek punitive damages nor are they allowed. To the extent that Plaintiff asserts a claim for punitive damages as to these four causes of action, the motion is granted and the prayer for punitive damages is stricken, **without leave to amend.**

Moving party is directed to give notice of ruling.